

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-12

DOLLAR GENERAL LOGISTICS, LLC

v.

YANG MING MARINE TRANSPORT CORP.

**COMPLAINANT’S MOTION FOR PERMISSION TO FILE PROPOSED
VERIFIED AMENDED COMPLAINT AGAINST RESPONDENT AND JOINT MOTION
TO EXTEND DEADLINES**

Complainant Dollar General Logistics, LLC (“Dollar General” or “Complainant”), by and through its undersigned attorneys, hereby moves pursuant to Rule 66 of the Federal Maritime Commission’s (the “Commission” or “FMC”) Rules of Practice and Procedure (the “Rules”), 46 C.F.R. Section 502.66, for permission from the Presiding Officer in this case to file its proposed Verified Amended Complaint, attached hereto as **Exhibit A** (the “Amended Complaint”), against Respondent Yang Ming Marine Transport Corp. (“Respondent” or “Yang Ming”).¹ Complainant and Respondent also jointly move pursuant to Rules 69 and 102 of the Rules, 46 C.F.R. Sections 502.69 and 502.102, for an extension of the remaining deadlines set forth in the Presiding Officer’s January 21, 2026 Second Amended Scheduling Order in order to allow time for briefing and decision on this motion and the orderly preparation and filing of merits briefs thereafter.

¹ In addition, a redline comparison of the Amended Complaint against the Verified Complaint is attached hereto as **Exhibit B**.

MOTION FOR PERMISSION TO FILE PROPOSED VERIFIED AMENDED COMPLAINT

I. LEGAL STANDARD

Rule 66(a) of the Rules, 46 C.F.R. Section 502.66(a), provides:

Amendments or supplements to any pleading (complaint, Order of Investigation and Hearing, counterclaim, crossclaim, third-party complaint, and answers thereto) will be permitted or rejected, either in the discretion of the Commission or presiding officer. No amendment will be allowed that would broaden the issues, without opportunity to reply to such amended pleading and to prepare for the broadened issues. The presiding officer may direct a party to state its case more fully and in more detail by way of amendment.

The Rules do not specify criteria for permitting or rejecting proposed amended pleadings, but Rule 12 of the Rules provides that “[i]n proceedings under this part, for situations which are not covered by a specific Commission rule, the Federal Rules of Civil Procedure will be followed to the extent that they are consistent with sound administrative practice.” 46 C.F.R. Section 502.12. Rule 15(a)(2) of the Federal Rules of Civil Procedure provides that the court—here, the Presiding Officer—“should freely give leave [to amend a pleading] when justice so requires.” Fed. R. Civ. P. 15(a)(2).

II. PROCEDURAL POSTURE

Complainant has not previously sought to amend its Verified Complaint. Pursuant to 46 CFR § 502.71, on May 14, 2026, the undersigned counsel for Complainant sent counsel for Respondent an unverified draft of the proposed Amended Complaint, inviting Respondent to confirm whether Respondent would consent to the proposed filing of the Amended Complaint or oppose the instant motion. On May 27, 2026, Respondent replied via email that it would not consent to the filing of the proposed Amended Complaint.² No other motions are currently pending

² Respondent did not indicate whether it would oppose the filing of the proposed Amended Complaint.

in this case. Due to scheduling constraints, the parties currently are completing expert depositions. In addition, Complainant is reviewing a supplemental document production made by Respondent on May 25, 2026. Finally, the parties expect to receive a declaration and data from non-party subpoena recipient Expeditors International of Washington, Inc. (“Expeditors”).

III. ARGUMENT

Complainant’s proposed Amended Complaint does not add any additional respondents to this proceeding or change the nature of the claims previously alleged in its original Verified Complaint. Instead, on the basis of information learned in discovery in this case, it claims that Respondent’s alleged conduct also violated three additional provisions of the Shipping Act. Specifically, it claims (1) that Respondent’s alleged practices of systematically failing to meet service commitments, refusing to honor contract rates, and failing to provide vessel space for shipments destined for or originating from specific ports in connection with its service pursuant to its service contract with Complainant constituted unfair and unjustly discriminatory practices in the matter of rates and charges with respect to those ports, in violation of 46 U.S.C. Section 41104(a)(5) (“Section 41104(a)(5)”). It also claims (2) that these alleged practices in connection with Respondent’s service pursuant to its service contract with Complainant constituted giving undue or unreasonable preference or advantage to, and/or imposing undue or unreasonable prejudice or disadvantage with respect to, certain ports, in violation of 46 U.S.C. Section 41104(a)(9) (“Section 41104(a)(9)”). It further claims (3) that Respondent engaged in retaliation against Complainant by both refusing or threatening to refuse cargo space accommodations when available and resorting to other unjust, unreasonable, or discriminatory methods against Complainant, including cutting the proposed minimum quantity commitment in a proposed future service contract, in violation of the former 46 U.S. Code Section 41104(a)(3), now codified at 46

U.S. Code Section 41102(d) (“Section 41102(d)”). These additional causes of action in the proposed Amended Complaint, the specific factual bases of which only became clear to Complainant through documentary discovery and deposition testimony in this case, are being timely brought, prior to merits briefing, and do not impermissibly broaden the issues in the case.

A. *Retaliation*

Based on deposition testimony in this case and other critical evidence suggesting affirmative concealment of material information by Respondent, Complainant’s proposed Section 41102(d) cause of action and the allegations underlying it reflect violations of the Shipping Act based on Respondent’s systematic practices and decision-making. As alleged in the original Verified Complaint, Respondent’s course of conduct during the relevant time period reflected conscious and intentional practices and policies designed to enrich Respondent at the expense of Complainant and other shippers during a time of significant market disruption. As alleged in the proposed Amended Complaint, after Complainant voiced its concerns to Respondent about Respondent’s practices and policies, instead of reassessing such practices and policies to bring itself into compliance with the Shipping Act and associated regulations, Respondent instead undertook actions to retaliate against and punish Complainant for raising its legal concerns. Such alleged conduct undermines the fair operation of a competitive shipping market, which the Shipping Act is designed to protect, and chills the ability of shippers and other members of the shipping industry to defend themselves and assert their legal rights against ocean carriers. The Commission consequently would have a strong interest in adjudicating Complainant’s proposed additional claim to ensure that Complainant’s alleged injuries receive due process and redress, and so that such alleged practices do not negatively impact other shippers or the shipping industry as a whole in the future. *See* FMC, Statement of the Commission on Retaliation, FMC Dkt. No. 21-15 (issued Dec. 28, 2021).

B. Discriminatory Practices in the Matter of Rates and Charges

Based on documentary discovery and deposition testimony in this case, the proposed Amended Complaint adds a cause of action under Section 41104(a)(5), alleging that Respondent's practices of systematically failing to meet service commitments, refusing to honor contract rates, and failing to provide vessel space for shipments destined for or originating from specific ports also constituted unfair and unjustly discriminatory practices in the matter of rates and charges with respect to those ports. As detailed in the proposed Amended Complaint, Respondent's prioritization of higher-priced cargo and redirection of vessel capacity to other world regions or routes during times when it was already failing to meet its transpacific service commitments to its beneficial cargo owner customers reflect a clear pattern of conduct targeted at the rates and charges for carriage to and from the ports that were supposed to be serviced under Complainant's service contract, rather than legitimate transportation factors, in violation of Section 41104(a)(5).

C. Undue/Unreasonable Prejudice and Disadvantage with Respect to Ports

Based on documentary discovery and deposition testimony in this case, the proposed Amended Complaint also adds a cause of action under Section 41104(a)(9), alleging that Respondent, in connection with its service contract obligations to Complainant, systematically and without legitimate transportation justification gave undue or unreasonable preference or advantage to certain ports while imposing undue or unreasonable prejudice or disadvantage with respect to the ports that were supposed to be serviced under Complainant's service contract, including by directing available vessel capacity and cargo space to ports and routes generating higher spot-market revenue while deprioritizing the ports critical to Complainant's supply chain. This port-based discrimination, which is distinct from but related to the rate-and-charges discrimination alleged under Section 41104(a)(5), reflects Respondent's deliberate, systematic, and profit-driven

reallocation of capacity away from the ports to be serviced under Complainant's service contract, rather than any legitimate operational or transportation factor, in violation of Section 41104(a)(9).

D. Impact on Reparations

The production of documents and deposition testimony in this case suggesting retaliation and affirmative concealment by Respondent, and the corresponding additional causes of action arising under Section 41102(d), Section 41104(a)(5), and Section 41104(a)(9), potentially impact the calculation of the reparations to which Complainant is entitled. In particular, under the Shipping Act a showing of prohibited retaliation authorizes ordering the payment of additional amounts of reparations up to twice the amount of Complainant's actual injury. *See* 46 U.S.C. § 41305(c).

Because the retaliatory conduct identified during discovery in this case impacted Complainant in connection with the 2022–23 shipping year (i.e., the shipping year *after* the year that was the primary focus of the original Verified Complaint), Complainant must now undertake an analysis of lost profits with respect to that subsequent shipping year.³ As alleged in the Amended Complaint, Respondent's systematic failure to meet its service commitments created operational uncertainty that disrupted Complainant's ability to ensure the timely availability of merchandise for its U.S. consumers, and while Complainant attempted to mitigate these injuries by securing higher-priced carriage on the spot market, its total volume of imported cargo was nonetheless reduced, leading to a direct loss of revenue and profits. The revised schedule proposed herein prevents prejudice to Complainant by affording it the time necessary to conduct such an analysis (and affording Respondent the time necessary to respond to that analysis), which is

³ The necessity of such an analysis is suggested by the recent initial decision of the Commission's Chief Administrative Law Judge in *20230930-DK-Butterfly-1, Inc. f/k/a Bed Bath & Beyond Inc. v. Orient Overseas Container Line Ltd.*, FMC Dkt. No. 23-02, slip op. at 194-95 (FMC CALJ Apr. 24, 2026).

essential for a fair adjudication of the harm suffered by Complainant in light of this new evidence of retaliation.

As recognized by the FMC's Chief Administrative Law Judge in *OJ Commerce v. Hamburg Südamerikanische Dampfschiffahrts-Gesellschaft A/S & Co. KG et al.*, FMC Dkt. No. 21-11, in which another ocean common carrier similarly failed to fulfill its service commitments, leading to a shortfall of container carriage for the shipper, lost profits can be determined by calculating the average profits per container of the shipper's cargo actually carried by the carrier multiplied by the shortfall of containers that the carrier failed to carry. 2024 WL 4034610, at *21-23 (approving damages calculation on basis of detailed spreadsheet submitted by Complainant reflecting actual shipments). This per-container average profit applicable to Complainant's goods for the relevant time period is a matter of fact that Complainant must be given an opportunity to prove in light of this newly discovered evidence of retaliation.

E. Conforming the Pleading to the Facts Identified in Discovery

In addition to allegations specifically supporting the proposed additional causes of action discussed above, the proposed Amended Complaint also seeks to conform its original allegations and causes of action to the material facts identified in discovery in this case, including internal and external communications and deposition testimony by Respondent's employees, consistent with the alleged violations of the Shipping Act. These additional allegations are substantially based on facts that were not yet available to Complainant at the time it filed its original Verified Complaint because they stem principally from Respondent's internal communications produced by Respondent in discovery in this case and confirmed during fact depositions of Respondent's employees. Such facts are and have been well known to Respondent, as they relate to Respondent's own conduct, policies, and practices, including the business relationship between Complainant and Respondent, during the 2021–22 and 2022–23 shipping years. Consequently,

Complainant's proposed Amended Complaint will not unduly prejudice Respondent, and to the extent Respondent may believe that additional expert analysis with respect to the proposed additional causes of action or Complainant's forthcoming lost profits analysis with respect to the 2022–23 shipping year is necessary, the revised schedule proposed herein would afford Respondent that opportunity.

As such, the proposed Amended Complaint does not impermissibly broaden the issues in the case, and Respondent will, in any case, have an opportunity to respond to the instant motion and prepare their defenses with respect to the proposed Amended Complaint. Instead, the proposed Amended Complaint seeks to address in good faith what appears to Complainant to have been retaliatory conduct that took place during the shipping year at issue in the original Verified Complaint and harmed Complainant both during that shipping year and the subsequent one.

Consequently, the addition of the proposed Section 41102(d), Section 41104(a)(5), and Section 41104(a)(9) causes of action will not significantly enlarge the scope of issues subject to discovery or create any significant additional burden on Respondent.

There also is no dilatory motive underlying this motion. To the contrary, permitting the parties to proceed to merits briefing in this case on the basis of the proposed Amended Complaint would be more efficient and cost-effective than, for example, requiring the filing of a new, separate complaint against Respondent alleging these causes of action, which would entail duplicative proceedings regarding the very same conduct and time period at issue in this case. As the parties have not yet submitted merits briefing in this case, the proposed Amended Complaint should not, in and of itself, cause delay or inconvenience.

JOINT MOTION TO EXTEND DEADLINES

I. The Current Schedule

On January 21, 2026, the Presiding Officer entered a Second Amended Scheduling Order with the following deadlines relevant to this Motion:

April 24, 2026: Disclosure of initial expert reports

May 8, 2026: Disclosure of rebuttal expert reports

May 22, 2026: Complete expert depositions

May 22, 2026: Complete discovery

June 22, 2026: Complainant's Initial Brief, proposed findings of fact, appendix

July 20, 2026: Respondent's Opposition Brief, responses to proposed findings of fact, proposed findings of fact, appendix

August 3, 2026: Complainant's Reply Brief and responses to Respondent's proposed findings of fact

The parties are cognizant of the Presiding Officer's caution concerning further extensions of the current case schedule, but with full regard for same respectfully submit the below as good cause for an additional extension of merits briefing deadlines pending the Presiding Officer's resolution of Complainant's motion for permission to file the proposed Amended Complaint.

Since the issuance of the Second Amended Scheduling Order, the parties have continued to move forward pursuant to it. Complainant served its initial expert report, Respondent subsequently served three expert reports, and the parties have coordinated their schedules to complete expert depositions and complete remaining documentary discovery. As discussed above, however, Complainant's proposed additional Section 41102(d) cause of action, based on facts learned during discovery in this case, necessitates a lost profits analysis with respect to the 2022–2023 shipping year in order to determine associated reparations, and due process requires that

Complainant be afforded time to complete such analysis and Respondent be afforded time to respond to such analysis.

II. Good Cause Exists to Extend the Current Deadlines

Rule 102(a) of the Commission's Rules provides in relevant part that "[m]otions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." 46 C.F.R. § 502.102(a).

A. Completion of Existing Discovery and Merits Briefing

Throughout this case, the parties and their counsel have worked, and continue to work, collaboratively to complete discovery as expeditiously as possible, and to date have managed to avoid the need to raise any discovery disputes to the Presiding Officer. The parties have endeavored to complete fact and expert discovery to the extent feasible by the May 22, 2026 deadline contemplated by the Second Amended Scheduling Order. Due to schedule conflicts, the parties are currently completing expert depositions as expeditiously as possible. On May 25, 2026, Respondent produced a supplemental document production in response to document requests arising from the April 17, 2026 deposition of Respondent's employee Michael Wu. The parties anticipate receiving in the coming days a declaration and data from non-party subpoena recipient Expeditors, which should complete existing discovery in this matter.

As discussed above, however, Complainant contends that it has identified and discovered in the course of discovery in this case critical evidence suggesting affirmative concealment of material information by Respondent during the time period relevant to this case. Because some of the documents at issue were originally written in Mandarin Chinese, Complainant had to commission translations to ascertain their meaning and relevance to the case, which came to light only in the course of fact depositions in the case. As reflected in the proposed Amended

Complaint, these documents and related deposition testimony are what provided the factual basis for Complainant's proposed additional claims relating to retaliation, discrimination, and undue prejudice and disadvantage. Consequently, if the Presiding Officer grants Complainant permission to file the Amended Complaint, the parties will accordingly require additional time to address these additional causes of action and facts in their respective merits briefing.

B. Need for Lost Profits Analysis

As further discussed above, the Section 41102(d) retaliation claim in Complainant's proposed Amended Complaint necessarily implicates the 2022–23 shipping year for purposes of calculating the reparations to Complainant. Since Respondent's newly discovered conduct impacted a time period in which Complainant experienced operational disruptions and a reduction in imported cargo, an analysis of Complainant's lost profits and increased freight costs during that time period is now necessary. Permitting such an analysis, and affording Respondent the time it needs to respond to that analysis, is essential for a fair adjudication of the merits of Complainant's claims and the harm Complainant suffered. Proceeding on the current schedule would deprive the parties and their respective experts of that necessary opportunity.

C. The Extension Request Is Narrowly Tailored.

In making this motion, the parties have limited this request to the amount of additional time reasonably necessary to tailor the parties' merits briefing to the Presiding Officer's decision on Complainant's motion for permission to file its proposed Amended Complaint, with the understanding that Complainant will, in the meantime, proceed to undertake the lost profits analysis necessitated by its proposed Section 41102(d) claim in order to avoid delay. The parties will endeavor to avoid any further requests for additional time.

D. Proposed Schedule

For the reasons detailed above, the parties therefore request that the Presiding Officer order the following amended schedule, which based all remaining deadlines in the case on the Presiding Officer's decision on Complainant's motion for permission to file its proposed Amended Complaint:

	January 21, 2026 Second Amended Scheduling Order	Proposed Schedule
Disclosure of Complainant's lost profits analysis	N/A	No later than 14 days after the Presiding Officer's decision on Complainant's motion for permission to file its proposed Amended Complaint
Disclosure of Complainant's supplemental expert report(s) concerning lost profits analysis, if any	N/A	No later than 14 days after disclosure of Complainant's lost profits analysis
Disclosure of Respondent's rebuttal expert report(s) concerning lost profits analysis, if any	N/A	No later than 14 days after disclosure of Complainant's supplemental expert report(s) concerning lost profits, if any
Complete expert depositions on lost profits analysis, if any	N/A	Within 14 days after disclosure of Respondent's rebuttal expert report(s) concerning lost profits analysis, if any
Complainant's Initial Brief, proposed findings of fact, appendix	June 22, 2026	90 days after the Presiding Officer's decision on Complainant's motion for permission to file its proposed Amended Complaint
Respondent's Opposition Brief, responses to proposed findings of fact, proposed findings of fact, appendix	July 20, 2026	28 days after the filing of Complainant's Initial Brief, proposed findings of fact, appendix

Complainant's Reply Brief and responses to Respondent's proposed findings of fact	August 3, 2026	14 days after the filing of Respondent's Opposition Brief, responses to proposed findings of fact, proposed findings of fact, appendix

CONCLUSION

For the foregoing reasons, Complainant respectfully moves the Presiding Officer in this case for an order permitting Complainant to file and proceed in this case on the basis of the proposed Amended Complaint filed herewith, and the parties jointly move for an order granting the Motion to Extend Deadlines.

Dated: May 28, 2026

Respectfully submitted,

HUTH REYNOLDS LLP

MAHONEY & KEANE, LLP

/s/ J. Lee Hill

/s/ Edward A. Keane

Karl C. Huth
(212) 731-9333
huth@huthreynolds.com
Matthew J. Reynolds
(646) 872-9353
reynolds@huthreynolds.com
J. Lee Hill
(405) 826-3226
lhill@huthreynolds.com
Heewan Noh
(202) 420-9628
hnoh@huthreynolds.com

Edward A. Keane
Garth S. Wolfson
40 Worth Street, Suite 602
New York, New York 10013
(212) 385-1422
ekeane@mahoneykeane.com
gwolfson@mahoneykeane.com

Counsel for Respondent Yang Ming Marine Transport Corp.

41 Cannon Court
Huntington, NY 11743

Counsel for Complainant Dollar General Logistics, LLC

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondent Yang Ming Marine Transport Corp. by emailing copies of the document to their counsel of record listed below:

Edward A. Keane
Garth Wolfson
40 Worth Street, Suite 602
New York, New York 10013
Telephone: (212) 385-1422
E-Mail: ekeane@mahoneykeane.com
E-Mail: gwolfson@mahoneykeane.com

Counsel for Respondent Yang Ming Marine Transport Corp.

Dated: May 28, 2026

/s/ J. Lee Hill

J. Lee Hill

For Complainant Dollar General Logistics, LLC